SAN ANDREAS SANITARY DISTRICT, et al v LOCKWOOD, et al

25CV48360

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

This is an action for breach of contract, nuisance, and declaratory judgment related to two permanent public utility easements and one access easement over three separate parcels of real property for the benefit of the San Andreas Sanitary District ("District.") Defendants are Lisa Lockwood ("Lockwood"), Donald Neu ("Neu") and Neuwood Ranch Goats, LLC. ("LLC") (collectively "Defendants.") Lockwood and Neu are the record owners of the Properties. LLC operates a goat grazing business, with Lockwood and Neu as members of the LLC.

Now before the Court is an order to show cause why a preliminary injunction should not issue against Defendants.

I. <u>Background Facts</u>

Lockwood and Neu own the real property commonly known as 1516 Highway 12, San Andreas, California 95249 located in Calaveras County identified by Assessor's Parcel Numbers: 040-008-060-000 ("Property 1"); 040-013-009-000 ("Property 2"; and 040-012-026- 000 ("Property 3" (collectively, the "Properties.") (Complaint ¶ 6.) The District holds three recorded easements (two permanent public utility easements and one access easement) granting it access to operate, maintain, inspect, and repair its wastewater treatment monitoring system over three separate and commonly owned parcels. (*Id.* ¶ 1.) The LLC operates a goat grazing business on the Properties. (*Id.* ¶ 7.)

In February of 2004, Isabel M. Neilsen, individually and as Trustee of the Isabel M. Neilsen Revocable Trust ("Neilsen") conveyed to the District a permanent easement for the purposes of placing, maintaining, and operating a flow meter on the Calaveras River together with a monitoring station and an access easement for ingress and egress. (Complaint ¶ 11.) Subsequently, Nielsen accepted the District's offer to purchase a temporary construction easement and an additional permanent utility easement for the installation and maintenance of an underground sewer main with surface manholes. (*Id.* ¶ 12.) In November of 2017, Nielsen conveyed the Properties by grant deed to Lockwood and Neu. (*Id.* ¶ 13.)

The District holds a 15-foot-wide permanent public utility easement and 15-foot-wide access easement over approximately 0.50 acres of Property 2 benefiting the District ("Check Dam Easements.") (Complaint ¶14, Ex. 3.) The Check Dam Easements allows the District access to Property 2 for the purposes "placing, maintaining and operating a flow meter on the Calaveras River together with a monitoring station…"; and (b) a non-exclusive access easement for ingress and egress. (Complaint ¶ 15.) The Check Dam Easements are essential to the District's ability to record the Calaveras River's flow discharge (as required by the District's NPDES permit) and the District's ability to operate its monitoring station. (*Ibid.*)

The District holds a 20-foot-wide permanent public utility easement over approximately 1.02 acres of the Properties ("Outfall Easement.") (Complaint ¶ 20, Ex. 4.) Nielsen conveyed the Outfall Easement to the District in April of 2024. (*Ibid*.) The Outfall Easement is a non-exclusive permanent public utility easement for the purposes of "placing, maintaining and operating an underground sewer main with surface manholes[]…" (*Id.* ¶ 21.)

According to the Defendants, a portion of the Outfall Easement runs through a fenced pasture on the Ranch (Declaration of Donald Neu ("Neu Decl.") ¶10.) Defendants contend this is their "largest permanently fenced pasture." (*Ibid*.) Defendants assert that there is an existing heavy duty livestock gate at the southeastern edge of the pasture which provides the sole ingress/egress for the pasture. (*Ibid*.) The Outfall Easement runs through this gate. (*Ibid*.) There is no gate at the northwestern edge of the pasture. (*Ibid.*)

District alleges that for approximately two years on and off, Lockwood and Neu (and Does 1-10) have breached the Deed of Easement conveying the Check Dam Easements by allowing obstructions that prevent entry to the Check Dam Easement's roadway. Specifically, defendants allegedly allow livestock to roam their property which prevents the District's ability to enter the roadway to access its easements. (Complaint ¶ 26.) Lockwood and Neu have also allegedly placed either a barbed wire or an electric fence on the Properties which prevents the District from utilizing the Outfall Easement. (*Id*. ¶ 30.)

Defendants contend that the pasture has been fenced since they purchased the Properties and they believe it has been fenced since at least 1970 (ie., before the easements). (Neu Decl. ¶ 10.) Thus, Defendants argue that the fence was a known existing obstacle prior to the easements and Plaintiff never objected to its existence when obtaining the easements.

According to Defendants, prior to their acquisition of the Ranch, and for several years after, District used an unrecorded "alternative access point to reach the Outfall Easement" with permission from the owners. (Neu Decl. ¶ 6; Complaint ¶ 30.) Defendants refer to this as the "Extra Easement Areas of Travel." (Neu Decl. ¶6.) However, according to Defendants, the Plaintiff's use of this alternative access caused damage to the properties and accordingly Defendants insisted that Plaintiffs use the actual access point in the Outfall Easement. (*Id*. ¶¶ 7, 8.)

On October 17, 2025, this Court issued a Temporary Restraining Order and Order to Show Cause Why a Preliminary Injunction Should not Issue Enjoining Defendants from obstructing the San Andreas Sanitary District's public utility easement ("Outfall Easement"). The TRO enjoined Defendants from obstructing the Outfall Easement by the electric fence, and from interfering with the District's operation and maintenance of its underground sewer pipeline located at the North Fork Calaveras River.

Subsequent to the TRO, the District confirmed that the electric fence has been removed from the Outfall Easement (Declaration of Hugh Logan in Support of OSC ("Logan Decl."), ¶ 4.)

District filed a supplemental brief in support of the OSC. Defendants oppose imposition of the injunction.

II. Legal Standard and Discussion

When determining whether to issue a preliminary injunction, the court considers two interrelated questions: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554; *see also Robbins v. Sup. Ct*. (1985) 38 Cal.3d 199, 206; Code Civ. Proc., § 526.)

A. Likelihood of Prevailing on the Merits

District's complaint brings causes of action for breach of contract, private nuisance, and declaratory relief.

In order to prevail on a cause of action for breach of contract, the District must demonstrate: 1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Here, District has alleged and produced evidence of valid easements, giving the District the right to access and maintain the sewer lines and flow meters. Defendants do not dispute that the easements are valid – rather, they argue that the fence is not new and the Outfall Easement only prohibits the construction or placement of a permanent improvement. It does not, according to Defendants, require removal of a pre-existing permanent improvement and they contend the barbed fence was just that.

District has also alleged and produced evidence that it has complied with the various easements, but that Defendants have breached the easements by blocking access to the Properties. The Court agrees with this assessment, even if the fence pre-dated the Outfall Easement (which is not definitively established). All parties agree that the District has a valid easement to access and maintain the sewer lines and flow meters. There is also no dispute that in order to do so, the District has to actually access the areas covered by the easements, including with equipment and machinery. Prior to 2024, the

District was not blocked by the fences on the Outfall Easement because it was using the "alternative access" to perform its work. Once Defendants refused to allow the District to use the alternative route, the *only* method for reaching the sewer lines was through the Outfall Easement. The fence is blocking access which is resulting in the District not being able to effectually use their easements.

Finally, Defendants have alleged that they have been damaged because they cannot access their equipment to perform maintenance or other operations unless its employees use an industrial size ladder to climb over the barbed wire fence. (Logan Decl. ¶ 8.) Requiring the Plaintiff's employees to scale the ladder violates the District's safety and injury prevention policies. (*Id*. ¶¶ 9-11.) Plaintiff asserts that "[i]f the District is required to implement the current unsafe access procedure (i.e., access via ladder over the barbed wire fence) during the pendency of this litigation, there is a significant risk that an employee may be injured and the District may incur liability under workers' compensation laws if an employee is injured." (*Id*. ¶ 12.)

Accordingly, District is likely to prevail on its cause of action for breach of contract.

Likewise, the District is likely to prevail on its cause of action for private nuisance. "When a person interferes with the use of an easement he deprives the easement's owner of a valuable property right and the owner is entitled to compensatory damages. The interference is a private nuisance and the party whose rights have been impeded can recover damages as measured in the case of a private nuisance." (*Moylan v. Dykes* (1986) 181 Cal.App.3d 561, 574.)

Finally, Plaintiff is likely to prevail on its request for declaratory relief because there is an actual controversy over the rights conveyed to the District through the easements.

B. Balance of Harm to the Parties

The Court must next look at the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554.) "[T]he more likely it is that [applicant] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue." (*King v. Meese* (1987) 43 Cal. 3rd 1217, 1227.) The general purpose of a preliminary injunction is often to preserve the status quo. (*Harbor Chevrolet Corp. v. Machinists Local Union 1484* (1959) 173 Cal.App.2d 380, 384.)

District's motion states that it is being harmed through Defendants' conduct because, while the electric fence was removed, there remains a barbed wire fence which poses a safety threat to its workers and impedes access to the Outfall Easement. (The District states that it is now forced to either subject its employees to unsafe working conditions (and potentially opening themselves up to liability) or risk noncompliance with requirements of the Regional Water Quality Control Board. (*Id.* ¶ 15.)

In opposition, Defendants raise serious concerns about their ability to run their business if they are required to remove the fence around their largest grazing area. According to Defendants, they typically keep between 100-250 goats on the ranch and their main business is leasing the goats for long-term and short-term grazing on properties in Calaveras, Amador, and Tuolumne Counties. (Neu Decl. ¶ 9.) Defendants aver that goats are “voracious eaters and between off-site stints must be regularly moved around the ranch for grazing to keep fed.” (*Ibid*.) They assert that while “removal of the fence across the easement is a simple task, doing so will render the pasture unusable for keeping goats.” (*Id.* ¶ 14.) Defendants also assert that they are willing to install a gate for access, but that it is cost-prohibitive if they are required to pay for the entire gate (estimated at $5000 with labor) themselves. (*Ibid.*)

The Court is cognizant of the impacts on Defendants’ business if the fence is removed. However, while this is a relatively close call, the public’s interest in safe and working sewers and waterways, and the District’s need to maintain safe working conditions, outweigh the Defendants’ private financial interests.

Accordingly, the District’s has shown cause as to why the preliminary injunction should be **GRANTED**.

III. Conclusion

The preliminary injunction is granted. Defendants are ordered to remove the barbed wire fence or, alternatively, are required to provide a safe means of access through the fence that does not require the use of a ladder. Defendants are further enjoined from taking any steps that would unreasonably interfere with the District’s ability to perform all operations and maintenance as allowed and anticipated via the easements currently in place.

Plaintiff is ordered to pay a bond of $5,000.00. Both parties are required to participate in a **mandatory settlement conference set for October 19, 2026, at 8:30 a.m. in Department 2**, at which time the Court anticipates a discussion of the cost of a gate or other means of safe access over the Outfall Easement. MSC Statements must be filed and served by 3:00 p.m. on October 9, 2026.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

ALDANA v RUBIO

26CV48597

PLAINTIFF'S MOTION FOR TEMPORARY ORDERS

This case involves a complaint to partition real property located at 4893 Kiva Court, Copperopolis, California ("Property") brought by Jennifer Moon Aldana ("Aldana") against Paul Rubio ("Rubio").

Now before the Court is Plaintiffs' motion for temporary orders.

I. Background

Aldana is the sole borrower on an existing mortgage on the Property with Chase Bank. (Declaration of Jennifer Aldana ("Aldana Decl.") ¶ 3.) On March 19, 2025, Rubio was added to the deed on the Property but is not a co-borrower on the loan. (*Id.* ¶¶ 3.) Aldana avers that she has invested approximately $200,000 of her own funds into the Property. (Ibid.) According to the Grant Deed for the Property, Aldana and Rubio are tenants in common each with an undivided one-half interest in the Property. (*Id*. ¶ 3, Ex. J.)

The Property has negative equity because the current fair market value is less than the outstanding loan amount. (Aldana Decl. ¶ 4.) Chase has advised Aldana that the ½ transfer to Rubio violated the terms of the Loan and as a result the Loan may be considered in default and due payable in full. (*Id*. ¶ 5.) Chase has stated that the solutions to this issue are: 1) payoff the loan balance in full, 2) transfer the title back to Aldana in full, or 3) sale of the property. (*Ibid*.)

Plaintiff filed her Complaint for Partition on March 6, 2026. Defendant answered on May 29, 2026.